



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Director
Subject: A resolution expressing the support of the Governing Body for the submission of a petition by the Governing Body to the Downtown Development Authority for inclusion of property in the Downtown Development District.
Date: July 8, 2024

Background:

This resolution authorizes the Mayor, or his designee, to petition the Downtown Development Authority Board to include recently acquired property into the Downtown Development District. The property, recently referred to as the "Mead Triangle," is a 0.70-acre parcel contiguous to the northern boundary of the Downtown Development District. The addition of the property to the Downtown Development District will allow other properties that become contiguous to seek inclusion in the district by similar petition, if so desired.

The procedure for inclusion of additional land in the district is outlined in Wyoming Statute § 15-9-223 which reads as follows:

"15-9-223. Inclusion of additional property into development area; procedure.

Subsequent to the organization of an authority, additional property may be included in the development area. Proceedings for inclusion shall be initiated by petition to the board of the authority signed by the owner or owners in fee of each parcel of land adjacent to the existing area sought to be included. The petition shall include evidence satisfactory to the board concerning title to the property and an accurate legal description thereof. If the board approves the application, it shall submit the application to the governing body of the municipality. If the governing body also approves the application, it shall then, at a regular or special meeting, by amendment to the ordinance treating the authority, redescribe the development area so as to include the additional property as described in the petition. From the effective date of the amendment the additional property shall be included within the development area and shall be subject to any taxes thereafter imposed by the municipality for the use and benefit of the authority."

The proposed Governing Body review schedule is as follows:

- Introduction and Referral July 8, 2024
- Public Services Committee July 16, 2024
- Final consideration July 22, 2024

The proposed expansion area is in the northwest portion of the northern part of the Downtown Development District and is shown below. In the event the Downtown Development Authority Board approves the addition of the property to the area, the request will be sent on the Governing Body for final consideration . Final consideration would be in the form of an ordinance that amends City municipal code to redescribe the Downtown Development District area. Additional properties to the north and east may be included if accompanied by a similar petition.



Inclusion of the property and other properties will extend the Downtown Development District's 20.0 mill tax levy. Municipal lands used for municipal use are exempt from the assessment. Ultimately these parcels will be used as to support the Reed Rail Corridor but may have interim City uses between now and then.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE SUPPORT OF THE GOVERNING BODY FOR THE SUBMISSION OF A PETITION BY THE GOVERNING BODY TO THE DOWNTOWN DEVELOPMENT AUTHORITY FOR INCLUSION OF PROPERTY IN THE DOWNTOWN DEVELOPMENT DISTRICT."

WHEREAS, on July 9, 1984, the Governing Body approved Ordinance No. 2804 creating the Downtown Development Authority (herein referred to as "Authority") and Downtown Development District (herein referred to as "District");

WHEREAS, the City is owner of real property situated at 813 West 23rd Street, Cheyenne, Laramie County, Wyoming (herein referred to as "Property") comprising of point seventy acres (.70) more particularly described as:

CHEYENNE: TWO TRACTS OF LAND BEING A PORTION OF LOTS 1 – 4 AND 7 - 8, BLOCK 210, ORIGINAL CITY, DESC AS: BEG AT THE NORTHEAST CORNER OF SAID BLOCK 210, THENCE S 26 DEG 38' 52" E., ALONG THE EAST LINE OF SAID BLOCK 210, A DISTANCE OF 132.15' TO THE NORTH LINE OF THE ALLEY IN SAID BLOCK 210; THENCE S 63 DEG 33' 05" W., ALONG SAID NORTH LINE, A DISTANCE OF 114.17' TO THE BEGINNING OF A NON-TANGENTIAL CURVE TO THE LEFT; THENCE ALONG SAID CURVE THROUGH AN ANGLE OF 07 DEG 32' 56", A RADIUS OF 1042.30 FEET, AND WHOSE LONG CHORD BEARS N 65 DEG 27' 32" W., A DISTANCE OF 137.22 FEET; THENCE N 69 DEG 14' 00" W., A DISTANCE OF 34.53' TO THE NORTH LINE OF SAID BLOCK 210; THENCE N 63 DEG 30' 23" E., ALONG SAID NORTH LINE, A DISTANCE OF 223.54' TO THE POINT OF BEGINNING. AND: BEG AT THE SOUTHEAST CORNER OF SAID BLOCK 210, THENCE S 63 DEG 35' 46" W., ALONG THE SOUTH LINE OF SAID BLOCK 210, A DISTANCE OF 27.42' TO THE BEGINNING OF A NON-TANGENTIAL CURVE TO THE LEFT; THENCE ALONG SAID CURVE THROUGH AN ANGLE OF 08 DEG 23' 29", A RADIUS OF 1042.30 FEET, AND WHOSE LONG CHORD BEARS N 56 DEG 25' 08" W., A DISTANCE OF 152.52' TO THE SOUTH LINE OF THE ALLEY IN SAID BLOCK 210; THENCE N 63 DEG 33' 05"E., ALONG SAID SOUTH LINE, A DISTANCE OF 103.15' TO THE EAST LINE OF SAID BLOCK 210; THENCE S 26 DEG 38' 52" E., ALONG SAID EAST LINE, A DISTANCE OF 132.15' TO THE POINT OF BEGINNING;

WHEREAS, in accordance with Wyoming Statute § 15-9-223, subsequent to the organization of an Authority, additional property may be included in the development area provided the owner or owners in fee of each parcel of land adjacent to the existing District petition the Downtown Development Authority Board (herein referred to as "Board") to be included in the District;

WHEREAS, landowners adjacent to the Property have expressed interest in petitioning to be within the District but are prevented due to lack of contiguity with the District;

WHEREAS, it is the desire of the Governing Body to include this land in the District to increase opportunity for property owners adjacent to the Property;

NOW, THEREFORE, BE IT RESOLVED, that the Governing Body of the City of Cheyenne supports the Mayor executing and filing a Petition to be considered by the Board for inclusion of the Property and adjacent right-of-way in the District on behalf of the City of Cheyenne.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk